

"Neurodata Should Not Be a Commodity"

The lawyer member of the Privacy Authority: "We risk the disintegration of many protections, the path of a trial of intentions"

Interview with Guido Scorza, Member of the Authority for the Protection of Personal Data
(by Raffaele D'Ettore, Il Messaggero, September 20, 2023)

There are those who will bet everything on earbuds, those on wireless headphones, and those on more or less sophisticated versions of sensors with integrated EEG. Whatever the form, the direction is clear: the tech market wants to make thought reading portable. From the biomedical sector, neurotechnologies are now shifting towards the consumer market, partly thanks to recent advances in AI that streamline the decoding of brain signals. A varied constellation of startups and companies already promises to decipher our sleep-wake cycle in real time (the next range of Apple-branded AirPods will do this), to monitor employees' attention levels (Emotiv's MN8 earbuds), or to evaluate our emotional response to advertisements (G.Tec's Unicorn headphones).

The massification of these algorithms is on the doorstep of a market that generated \$12.8 billion in 2022. It will bring with it a revolution capable of creating fascinating horizons for biomedical research but also casting more than one shadow over the legal boundaries that protect our privacy. Guido Scorza, a lawyer and member of the Privacy Authority, has been dealing with these issues for years. He has dedicated his essay "Neuroverso" (Mondadori, 2023) to the delicate microcosm of "neuro-rights," thus highlighting an urgency shared by many professionals in the field: even if the time horizon is not yet clear, the right moment to act is now. And the first step, Scorza explains, will be to precisely define the foundations of this phenomenon.

"Neurodata" refers to unexpressed thought, that is, a thought in formation that I have not yet shared, or an emotion that I have not yet manifested. It is our most intimate part, of which we are often not even aware. A part of us that is already appealing to many on the web. "Today, the value of social media is given by their ability to present themselves to advertisers with as accurate data as possible about consumer habits. But this profiling is the result of deduction. Thought reading will allow us to skip the deductive part and have certain data." But there is more, because "all studies on marketing tell us that a large part of consumption choices arise from an emotional process, which has little rationality." A process that the new gadgets, capturing not only thought but also every biochemical nuance, will make even more transparent for companies. Where we previously limited ourselves to exchanging our digital habits—i.e., how many times we click on a link, which advertisements we view most on the web, what our favorite drink is—without adequate protections, the commodity of the future will be our thoughts.

But when this threshold is reached, Scorza has no doubts: "Neurodata cannot and must not be a subject of exchange. If it were ever to happen, the minimum essential condition must be absolute transparency regarding the value of what we are giving up compared to what we are acquiring."

This future indeed brings with it some significant gifts, especially in the biomedical field: by working on brain waves, it will be possible to restore speech to "locked-in" patients and even senses to those who have lost them. In other words, the path to clinical miracles passes through brain decoding. But the same path, without adequate protections, risks leading to continuous surveillance, mental conditioning, and coercion by anyone who knows how to profit from the collapse of the last bastion of our privacy. "A government with direct access to the thoughts of its citizens could scientifically divide supporters from opponents. With this technology, the Arab Spring would never have existed."

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Thought reading will allow an employer to have total control over their employees, while in court it will lead to "the disintegration of many, too many rights, opening the way to a trial of intentions." How do we prepare? "I would not introduce new rights but would enhance privacy by strengthening existing ones. Perhaps I would introduce one that prohibits the direct manipulation of thought. I am not a big fan of sanctions, especially in the business models of large companies where fines are easily digestible."

What is certain is that "a huge effort will be needed to raise awareness to prevent the debate from remaining confined to an academic level," and somehow also to mitigate the subtle unease that accompanies the idea of the uncontrolled spread of this technology: the fear that this door will not be forced but that we ourselves will willingly hand over the key. Perhaps to those—just as it was for social media—who will convince us that our thoughts, after all, are not that important.